AS TO THE ADMISSIBILITY OF

Application No. 16501/90
by Robert Henry HALFON
against the United Kingdom

The European Commission of Human Rights sitting in private on 12 April 1991, the following members being present:

MM. C.A. NØRGAARD, President
S. TRECHSEL
F. ERMACORA
G. SPERDUTI
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
Mrs. G. H. THUNE
Sir Basil HALL
MM. F. MARTINEZ RUIZ
C.L. ROZAKIS
Mrs. J. LIDDY
MM. J.-C. GEUS
A.V. ALMEIDA RIBEIRO
M.P. PELLONPÄÄ
B. MARXER

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 2 April 1990 by Robert Henry HALFON against the United Kingdom and registered on 24 April 1990 under file No. 16501/90;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a British citizen born in 1969 and resident in London. The facts as submitted by the applicant may be summarised as follows.

The applicant is a student at Exeter University, where he is studying politics as an undergraduate. As an undergraduate, the applicant is automatically made a member of the Exeter University Guild of Students (the Exeter University Students' Union). The Guild is provided for in the Statutes of the University, receives an annual grant from the University and it is regulated by University Ordinances. These provide:

"1. There shall be a Guild of Students.

2. The objects of the Guild shall be:

(a) to represent the students of the University in relations with the University Authorities, the National Union of Students and other bodies;

(b) to develop the cultural, social and athletic life of the students;

(c) to foster the corporate spirit of the student body.

3. All registered full-time students of the University shall be members of the Guild without payment of subscription. The Guild will receive an annual grant from the University."

The Guild is affiliated to the National Union of Students (NUS). On 13 October 1988, the Guild voted in a general meeting to continue its affiliation and to play a full part in NUS activities.

The Constitution of the NUS has as its aims:

(a) To represent the students of the United Kingdom, locally, nationally and internationally.

(b) To promote and maintain the educational, social, cultural and general interests of students.

(c) To arrange services, goods, facilities, and other benefits for members of the National Union, for persons and organisations associated with the National Union, and for other students and their organisations.

(d) To promote the views of students on problems in the educational system as a whole.

(e) To promote the interests of students on economic, social, and youth issues which have a direct effect on education or upon the status and welfare of students within society.

(f) To promote the views of students upon those issues which have a direct bearing on the education or social rights of students of any country.

(g) To maintain and promote cooperation with the students and student organisations of other countries.

(h) To discuss, comment and act upon current affairs which are of interest or importance to students.

(i) To support financially or in other ways causes which in the opinion of the Conference merit the support of students in general.

As a Conservative, the applicant objects to automatic membership of both the Guild and the NUS which often campaign against everything he believes in. He is unable to opt out, save by terminating his degree course. The applicant illustrates his complaints, inter alia, by reference to the occupation by the Guild Executive of the Vice Chancellor's offices in protest against proposed student loans and the decision of the Guild in October 1989 to suspend the University Conservative Association and to freeze its funds. In respect of the NUS, he has submitted inter alia that the NUS debated and passed resolutions concerning South African and Palestinian problems, supporting the miners during the 1984 miners' strike, attacking the Government's economic policies such as denationalisation and encouraging refusals to pay the poll tax. The NUS also sent public condolences to the family of one of the IRA terrorists shot in Gibraltar and invited Sinn Fein speakers to its 1989 conference.

COMPLAINTS

The applicant complains that his compulsory membership in the Guild and the NUS is contrary to Article 11 of the Convention. He complains that he has no possibility of opting out without thereby giving up his right to education.

THE LAW

The applicant has complained of being compelled to be a member of the student union of his university. He has invoked Article 11 (Art. 11) of the Convention which provides:

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

The Commission recalls that Article 11 (Art. 11) of the Convention offers protection in respect of private associations and trade unions, but not in respect of public institutions. It considers that the student union cannot be regarded as a professional organisation upholding ethics or discipline within a profession or as a trade union which represents its members in a labour conflict situation against an employer (see e.g. No. 6094/73, Dec. 6.7.1977, D.R. 9, p. 5). It is part of the university. The university being a public institution, the Commission finds that compulsory membership in the student union of the university does not disclose any appearance of a violation of Article 11 (Art. 11) of the Convention.

It follows that the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission by a majority

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Commission	President of the Commission
(H.C. KRÜGER)	(C.A. NØRGAARD)